REPORTABLE (06)

SUSCADEN INVESTMENTS (PRIVATE) LIMITED
v
(1) PARKS AND WILDLIFE MANAGEMENT AUTHORITY (2) MINISTER OF ENVIRONMENT, CLIMATE CHANGE TOURISM AND HOSPITALITY MANAGEMENT (3) BIG FIVE SAFARIS (PRIVATE) LIMITED

SUPREME COURT OF ZIMBABWE
BHUNU JA, CHIWESHE JA & MUSAKWA JA
HARARE: 22 JULY 2025 & 06 DECEMBER 2025

J.R Mafukidze with Ms *N.Moyo,* for the appellant

K. Kachambwa, for the first and second respondents

T.L Mapuranga, for third respondent

CHIWESHE JA: This is an appeal against the whole judgment of the High Court (the court *a quo*) sitting at Harare, dated 21 March 2025, granting a declaratory order and consequential relief in favour of the first and second respondents and against the appellant in the following terms:

> "**IT IS ORDERED THAT**:
> 1. Judgment for the applicants.
> 2. (a) The lease agreement entered into between the first applicant and the first respondent dated 8 September 2017 be and is hereby declared null and void "*ab initio*".
>
> (b) The first respondent be and is hereby interdicted from carrying out or conducting fishing, game viewing or photographic safaris in the whole of the Chewore North Safari Area.
>
> (c) The first respondent be and is hereby ordered to vacate the area it occupies in the Chewore North Safari Area as described in the agreement in para 2 (a) above.
>
> (d) The first respondent be and is hereby ordered to vacate the said area within ninety days of the granting of this order.

(e) Should the first respondent fail to vacate as ordered above the Sheriff be and is hereby ordered to evict the first respondent from the area it occupies by virtue of the agreement in para 2 (a).
(f) Each party to bear its own costs."

Aggrieved by the decision of the court *a quo*, the appellant noted the present appeal.

THE PARTIES

The appellant is a company duly registered in terms of the laws of Zimbabwe. The first respondent is a statutory body established in terms of the Parks and Wildlife Management Act [*Chapter 20:14*] (the Act). The second respondent is the Minister of Environment, Climate Change, Tourism and Hospitality Management. He or she is assigned by the President to administer the Act. The third respondent is a company duly registered in terms of the laws of Zimbabwe.

THE FACTS

On 08 September 2017, the appellant and the first respondent entered into an agreement (the agreement) in terms of which the first respondent leased to the appellant a portion of the Chewore North Safari Area for a period of twenty- five years. The detailed provisions of the agreement are not relevant to the resolution of the present appeal. The third respondent had similar arrangements with the first respondent concerning a different portion of the same Safari Area. Its involvement in this case arises from a perceived threat to its interests as the appellant's agreement with the first respondent, would in future, have the effect of displacing it from the Safari Area. Again, the third respondent's fears are not relevant to the resolution of this appeal.

What is in issue is not whether the appellant and the first respondent entered into an agreement but whether that agreement was approved by the second respondent as required by

law. The appellant asserts that the second respondent's approval was sought and granted as evidenced by the second respondent's signature appended to the agreement. On the other hand, the first and second respondents aver that the second respondent did not sign the lease agreement as alleged and that, for that reason, the lease agreement was null and void *ab initio*. To that end, they approached the court *a quo* with an application for a declaration to that effect plus consequential relief evicting the appellant from the leased property. The court *a quo* granted the relief sought by the first and second respondents, hence the present appeal.

PROCEEDINGS IN THE *COURT A QUO*

The first and second respondents *a quo* argued that the lease agreement was a nullity for two reasons. Firstly, it had not been sanctioned by the Minister as required by s 37 of the Act. Secondly, or alternatively, the agreement had a life span that exceeded the maximum period of twenty five years provided for in the Act. The second respondent's founding affidavit was deposed to by the incumbent Minister, N. M. Ndlovu. However, the agreement had been executed during the term of the previous Minister, O. Muchinguri – Kashiri, who filed a supporting affidavit. She stated that she had neither signed the agreement nor sanctioned its award. She averred that she would not have signed the agreement without inserting the date of signature as the date was important because it would have signified the date of commencement of the agreement and determined the duration of the lease.

To the contrary, the appellant argued that the second respondent had signed the agreement thus signifying her approval. It however admitted that in previous cases *a quo*, it had relied on an agreement which had not been signed by either the second respondent or the Permanent Secretary. It nonetheless insisted that the second respondent had signed the agreement

and that the fact that it had previously relied on an agreement not signed by the second respondent was irrelevant. It further averred that the question whether the second respondent signed the agreement amounted to a dispute of fact, which could not be resolved on the papers without hearing "*viva voce*" evidence. To that end, the court *a quo* invited the parties to call witnesses to prove or disprove that fact. The first, second and third respondents declined the invitation as they were of the opinion that their affidavits filed of record dealt with the issue adequately.

The appellant called one George Manyumwa who was the first respondent's Deputy Director – General (Commercial Services) during the period 2016 to October 2021. In that capacity, he was responsible for agreements of a commercial nature. He outlined the procedure for the signature and approval of agreements such as the one under consideration, as follows:

1. The Board of the first respondent would take a resolution to enter a lease agreement.
2. The parties would sign the agreement with the Director – General and the Board Chairperson signing on behalf of the first respondent at Parks Office.
3. The Registrar of Parks would then send the agreement to the Minister's Office for signature.
4. The Permanent Secretary would sign the agreement and give it to the Minister for his/her signature. Once so signed the agreement would be sent back to the Registrar of Parks. The Registrar would then give the signed lease agreement to the Business Development Manager who would bring it to the witness' office.
5. The lessee would then be notified that the lease has been signed and once the lessee paid the first year's rentals, he would be given a copy of the lease.

With regards the agreement attached to the appellant's affidavit and purportedly signed by the second respondent, the witness told the court *a quo* that he had been involved in the negotiations between the appellant and the first respondent culminating in a deed of settlement and, resultantly, the lease agreement. On 10 October 2017 the witness had called the appellant's representative advising him that he had received the signed lease from the first respondent's Development Manager. He did not give that representative the full lease agreement because the rental had not been paid. He plucked off some pages and gave the representative (one Nyamutsamba) through first respondent's legal manager, the remaining pages which included the first page bearing the parties` names and the page bearing the signatures of all signatories, including the second respondent. Asked why he would handle official documents in that way, he said they always did so. He had endorsed the papers given to Nyamutsamba with the words "copy, original to be given after payment."

Under cross examination, the witness admitted that he had not seen either the Permanent Secretary or the Minister signing the document and that therefore he could not contest the Minister's stance that she had not signed the agreement. Further, he was unable to reconcile the agreement which did not bear the Minister's signature with the one he said was signed by the Minister. He stated that the only agreement he was aware of was the one signed by the Minister. The witness was referred to three signed versions of the same agreement. The first version was the one signed by the appellant, the Director General of the first respondent and its Board chairman. He admitted that that version was different from the one he said had been signed by the Minister. The first version showed that the three signatories all signed on 08 September 2017. The second version showed that the first respondent's Director General signed on 11 September 2017 and not 08 September as reflected on the first version, with the Permanent Secretary signing on 04 October

2017 and not 8 September. On the Minister's portion, the Minister's signature appears but no date was endorsed. This is the agreement that the appellant relied on in asserting its rights. The third version of the agreement was the one which the witness relied upon and produced. Page 1 lists the parties to the agreement as the appellant and the first respondent. It bears the witness' date stamp of 10 October 2017 and is endorsed "copy" and "original to be produced after payment." These endorsements were made by the witness. The witness also produced pp 17 and 18 bearing the signatures of the parties to the agreement. When asked to reconcile the three versions of the agreement, the witness stated that the only agreement he was aware of was the one that he had endorsed "copy" which had the Minister`s signature.

FINDINGS OF THE COURT *A QUO*

The court *a quo* made a number of factual findings arising from the evidence placed before it. It noted as a common cause fact that in previous litigation in the court *a quo* under cases HC 6592/22 and HC 6806/22 the appellant had produced and relied upon an agreement that had not been signed by the Minister. However, in the instant matter, the appellant had produced an agreement which had been signed by the Minister. It further noted that no explanation had been proffered by the appellant for that anomaly. In that regard, the appellant had urged the court *a quo* to ignore previous litigation and accept the agreement now before it. Rejecting that contention, the court *a quo* ruled that it had the right to refer to its own records in deciding the matter before it.

The court *a quo* noted that there were three different versions of the same agreement. It noted in particular that the version relied upon by the appellant was different from that produced by its witness, Mr Manyumwa. The differences lay not in the text of the agreement nor in the fact that each version bore the Minister`s undated signature, but in the manner of the

signatures and in the dates upon which the signatories and their witnesses appended their signatures. It further found that there was no evidence that the Minister signed the agreement as alleged by the appellant and its witness. In fact, witness Manyumwa was not in charge of the movement of the agreement after signature by the first respondent and the appellant, nor was he responsible for the movement of the papers within and out of the Minister's office.

It further noted that there had been no attempt made to identify the minister's usual signature for comparison with the disputed signature. In that regard, the court *a quo* held that the submission by counsel for the appellant that the *onus* shifted to the Minister to prove that the signature on the agreement was not hers was misplaced in light of the fact that the agreements placed before it were in conflict with each other. On the contrary, it held that the *onus* was on the appellant to show the court *a quo* which of the three versions of the agreement was authentic. That is so because it was the appellant which relied on the inconsistent agreements to establish that the Minister signed the one version of the agreement or the other in the face of the Minister's denial. In the circumstances, the court *a quo* held that there was no evidence to satisfy it, on a balance of probabilities, that the Minister signed the agreement in question. It held that instead, it was the respondent who had proved, on a balance of probabilities, that the Minister had not signed the agreement.

The court noted that its finding that the Minister had not signed the agreement or otherwise approved it tacitly or explicitly, meant that the agreement was null and void for lack of compliance with the peremptory provisions of s 37 (1) (a) of the Act, which provides:-

> "37. Lease of sites and grant of hunting rights in Safari area.
> 1. The Authority with the concurrence of the Minister may
> (a) lease sites in a Safari area to such persons and for such purposes as it deems fit."

The court *a quo* rejected the appellant's argument that the respondents were *estopped* from denying the validity of the lease agreement in view of the fact that the first respondent had acted on the agreement, collected rentals and treated the agreement as valid. It held that the validation required was not that of the first respondent but that of the Minister. There being no Ministerial approval, the agreement was void "*ab initio*" and therefore not subject to *estoppel*. Aggrieved by the decision of the court *a quo*, the appellant noted the present appeal on the following grounds:

"GROUNDS OF APPEAL

1. The court *a quo* erred and grossly misdirected itself in failing to find that the second respondent had signed the lease agreement when the evidence showed her signature had been procured by the first respondent through its normal signing channels.
2. The court *a quo* erred and grossly misdirected itself in dismissing the evidence of Mr Manyumwa to the effect that he had received the lease agreement bearing the Minister's signature through the usual channels and instructed that it be handed to the appellant after payment of the annual fees.
3. The court *a quo* erred and grossly misdirected itself in failing to draw an adverse inference from the second respondent's failure to testify and avail herself for cross-examination after hearing the evidence of Mr Manyumwa.
4. The court *a quo* erred and grossly misdirected itself in placing the *onus* on the appellant to show that the second respondent had signed the lease when the first and second applicants bore the *onus* that the second respondent had not signed the lease agreement (*sic*).

5. The court *a quo* erred and grossly misdirected itself in blaming the appellant for the production of a lease agreement that did not contain the second respondent's signature in previous litigation when such version of the agreement was introduced by the third respondent in its application under Ref Case HCH 3107/18 and in fact defended by the first respondent.
6. The court *a quo* erred and grossly misdirected itself in failing to find that the first and second respondents in prior litigation had never claimed that the second respondent had not signed the 2017 lease agreement until their court application issued on 23 July 2023.
7. The court *a quo* erred and grossly misdirected itself by disregarding that the first and second respondents additionally recognized that there was a valid lease through sustained rental acceptance for over five years in which three different Ministers were in office."

The appellant sought the following relief:

"1. That the appeal is allowed with costs.

2. That the judgment of the court *a quo* is set aside and substituted with the following:

'The application is dismissed with costs."

ISSUES FOR DETERMINATION

The grounds of appeal only raise one issue for determination, namely, whether the second respondent (the Minister) signed or otherwise approved the lease agreement as required under s 37(1) (a) of the Act.

SUBMISSIONS BEFORE THIS COURT

In its heads of argument, the appellant submitted, in support of grounds 1, 2, 4 and 6, that there was direct and circumstantial evidence establishing that the Minister had signed the agreement and that the court *a quo* had misapplied the law regarding the burden of proof. It was contended that the appellant had sufficiently proved the existence of a duly signed lease through the testimony of Mr Manyumwa. His evidence was to the effect that the agreement bearing the Minister's signature came to him through standard internal channels and that the signed agreement had been transmitted to the appellant. The appellant submitted that although Mr Manyumwa did not witness the Minister signing the document, the routine and hierarchical nature of the movement of documents at the Minister's office and back to the first respondent's office, rendered the signature authentic. The appellant also submitted that there was no plausible motive or precedent for the Minister to deny her signature, given that she had never raised this denial in the five year period preceding litigation. It also argued that the burden of disproving the Minister's signature rested on the respondents who sought to nullify the agreement. The court *a quo* had thus misdirected itself in reversing the *onus* onto the appellant.

In support of ground 3, the appellant submitted that the court *a quo* should have drawn an adverse inference arising from the Minister's failure to testify or submit to cross – examination in view of the serious challenge raised against her credibility. The appellant contends that Mr Manyumwa's evidence stood as positive testimony confirming the Minister's signature on the lease agreement. It submitted that this direct evidence called for a reply from the Minister. It further submitted that the Minister's mere filing of an affidavit without subjecting herself to cross examination denied the court *a quo* the opportunity to test her credibility, more so as she made a denial not supported by any forensic examination or procedural audit. It was contended that the

correct approach in such circumstances was to treat the non – appearance of a party, whose credibility is in issue, as deserving an adverse inference as to their credibility.

In support of grounds 5 and 7, the appellant essentially raised one issue, namely, that the respondents' prior conduct, including positions taken in prior litigation, and continued recognition of the lease was contrary to the position now taken in the instant case. In that regard, the appellant submitted that from the inception of the lease agreement in 2017 until the launch by the respondents of the application *a quo* in 2023, the respondents behaved as if the lease was valid and binding. Between 2018 and 2023 the first respondent issued rental invoices annually and accepted payments without objection. At no stage during that period did the respondents allege that the lease agreement was defective and therefore null and void. Further, in litigation initiated by the third respondent under HC 3107/18 challenging the lease agreement, the first respondent had filed an affidavit defending the lease. The first respondent never intimated that the lease was invalid on the grounds that the Minister had not signed it. Accordingly, argued the appellant, the respondents are now *estopped* from asserting that the lease was void "*ab initio"*. It was argued that the court *a quo's* failure to recognize the effect of *estopped* arising from these common cause facts amounted to a misdirection both on the facts and on the law.

On the contrary, the first and second respondents' heads of argument were to the following effect. It was submitted that the court *a quo*'s finding that the lease agreement had not been signed by the Minister was beyond reproach. The Minister's affidavit made it clear that she had not signed the lease nor in any way approved its terms. In any event, contended the respondents, there was no date indicating when the Minister had so appended her signature to the agreement, an important factor in determining the lease period. It was submitted that the

appellant's witness, Mr Manyumwa, neither witnessed the minister sign the agreement nor did he receive it directly from her. His evidence was based on assumptions arising from routine office procedure. The respondents also submitted that the appellant had relied on conflicting versions of the lease agreement and failed to produce expert evidence to verify the Minister's signature. In the circumstances, it was submitted that the court *a quo* had properly weighed the evidence and come to the conclusion that the version provided by the Minister coupled by the inconsistencies in the appellant's own document, was more probable than that provided by the appellant. It was also submitted that an appeal court will not lightly interfere with the factual findings of a trial court and further, in the circumstances of this case that the burden of proof lay with the appellant to prove the Minister's signature.

Regarding the Minister's failure to testify and present herself for cross–examination, the respondents submitted that the Minister's evidence, given in her affidavit, was clear that she had not signed the document. They maintained that the burden remained on the appellant to prove its case and that the Minister's affidavit was sufficient to dispute the appellant's claim. The respondents further submitted that the appellant failed to discharge the evidentiary burden cast upon it even before considering whether the Minister should have taken the stand. Accordingly, it was argued that calling the Minister to the witness stand would have served no purpose other than harassment. Accordingly, the respondents argue that no adverse inferences could be drawn arising from the Minister's non – attendance.

Regarding the issue of *estoppel* as raised by the appellant in view of prior conduct on the part of the respondents, the respondents submitted that no amount of prior conduct can breathe life into an agreement that was void "*ab initio"*. It was a statutory requirement that there

be Ministerial concurrence. In the absence of such, the lease remained invalid regardless of the conduct of the parties. For that reason, the respondents maintained that they could not be *estopped* from challenging an invalid agreement.

ANALYSIS

The decision of the court *a quo* in holding that the lease agreement was void "*ab initio"* and therefore of no legal force or effect for lack of Ministerial concurrence was premised on the factual findings it made arising from the evidence placed before it. These factual findings have been referred to earlier in this judgment. It is settled that an appeal court will not lightly interfere with the factual findings of the court *a quo* unless the finding complained of is so outrageous in its defiance of logic or accepted moral standards that no sensible person given the evidence before such court, could have made such a finding. See *Hama* v *National Railways of Zimbabwe* 1996 (1) ZLR 664 (S).

In casu the evidence presented by the appellant was insufficient to prove the Minister`s signature on a balance of probabilities. Its witness, Mr Manyumwa, did not personally see the Minister signing the lease agreement. He conceded that fact under cross-examination. His evidence was based on assumptions. He had simply received the signed agreement for onward transmission to the appellant. He was not party to the internal processes in the Minister's office leading to the signature of the lease agreement. He further conceded that he was not in a position to dispute the Minister's denial that she had signed the agreement. In short, Mr Manyumwa's evidence did not advance the appellant's case in any material respect. The Minister's explanation that she would not have signed the lease without entering the date because the date determined the 25 year cap imposed by statute was logical and prudent.

More importantly, as observed by the court *a quo*, there were glaring discrepancies between the version of the lease the appellant relied upon and the version produced by Mr Manyumwa in that the manner of signatures and the dates upon which they were appended were different. These discrepancies were not explained and, in any event, no expert evidence was led by the appellant to verify the Minister's signature. Further, the court *a quo* noted that in previous litigation the appellant had relied on a version of the agreement not signed by the Minister. No reasonable explanation, if any, was given as to why, if the appellant had received, from the outset, as it now claimed, a lease agreement signed by the Minister, it had not in previous litigation, produced such signed version. In other words, the appellant was in essence admitting that it never had an agreement signed by the Minister prior to the proceedings *a quo*.

Under these circumstances, the court *a quo* cannot be faulted in its finding that the appellant had failed to provide clear evidence that the Minister had signed the agreement. Its findings of fact in this regard are logical given the evidence placed before it. It has not been shown that such findings were irrational or so outrageous that no sensible person could have arrived at the same. Accordingly, this Court concludes that there is no basis upon which it could interfere with the factual findings made by the court *a quo*.

The appellant has contended that the court *a quo* wrongly placed the burden of proving the Minister's signature upon it when such burden should have been placed on the respondents to disprove the Minister`s signature. It is trite that the burden of proof in civil cases rests on the party asserting a fact to prove on a balance of probabilities the existence of such fact. *In casu*, the Minister is not asserting a fact, she is denying a fact asserted by the appellant. In the face of that denial, the burden of proof certainly rests on the appellant to prove that the Minister in

fact did sign the agreement, notwithstanding her denial. The appellant could have discharged this *onus* by calling the person who witnessed the Minister signing the document and or leading evidence from handwriting experts. This Court holds that the court *a quo* was correct in holding that the burden to prove the Minister's signature lay on the appellant.

The appellant further contended that the court *a quo* erred in not drawing an adverse inference arising from the Minister's failure to attend court and subject herself to cross-examination in rebuttal of Mr Manyumwa's evidence. In civil cases, an adverse inference maybe drawn where a party fails to call a material witness or to submit to cross – examination on a critical factual dispute. Such inference is however not automatic nor can it be drawn from the air. It can only be drawn where a party has established such facts as would justify the drawing of the inference sought to be drawn. In the famous case of *R* v *Blom* 1939 AD 188, it was held that there are cardinal rules of logic that must be satisfied when dealing with inferential reasoning. "Firstly, the inference sought to be drawn must be consistent with all the proved facts. If it is not, it cannot be drawn and; secondly, the proved facts shall be such that they exclude every reasonable inference from them save the one sought to be drawn. If they do not exclude the other inferences then there must be doubt whether the inference sought to be drawn is correct."

The same test largely applies in civil cases, in that the inference sought to be drawn must also be consistent with all the proved facts but it need not be the only reasonable inference. It is sufficient if it is the most probable reasonable inference to be drawn. See "*Principles of Evidence*" 4th edition by Schwikkard and SE. Van der Merwe at p 579.

In casu, the appellant failed to establish such facts as would sustain the adverse inference it sought the court *a quo* to draw. Its evidence remained circumstantial and inconclusive. Mr Manyumwa's testimony was based on assumptions. He did not see the Minister signing the lease agreement. Indeed he conceded that he was not in a position to challenge the Minister's denial. In essence, the appellant did not establish a *prima facie* case against the Minister. The Minister's evidence on affidavit constituted a categorical denial. Such evidence remained unchallenged. In the circumstances the court *a quo*'s decision in declining to draw an adverse inference cannot be faulted. The burden remained on the appellant to prove the validity of the lease, including the existence of a duly signed and dated Ministerial approval. That burden was not discharged and the absence of cross-examination did not cure the appellant's evidential handicap. There being no "*prima facie*" case made against the Minister, there was no case for the Minister to answer. Accordingly no adverse inference could be drawn against her.

The appellant's contention that the first and second respondents be *estopped* from denying the validity of the agreement on account of the first respondent's conduct is not sustainable. That is so because it is trite that an agreement that does not comply with the mandatory provisions of a statute is void and *ab initio*. See *Dube* v *Khumalo* 1986 (2) ZLR 103 (SC). *In casu* s 37 of the Act required that there be ministerial concurrence to the agreement. None was obtained, rendering the agreement a legal nullity. No amount of prior conduct, such as the acceptance of rentals, silence or inaction on the part of the respondents, could over-ride this statutory requirement. The court a *quo* was correct in rejecting the contention that the respondents were, on that account, *estopped* from challenging the legality and therefore validity of the lease agreement.

DISPOSITION

This Court is satisfied that the factual findings of the court *a quo* were consistent with the evidence adduced before it. It's finding that the appellant had failed in its endeavor to prove that the Minister signed the lease agreement cannot be faulted. The appellant's own witness did not himself see the Minister sign the lease agreement. There were discrepancies between the signatures and dates of signatures between the version relied upon by the appellant and that produced by its witness. Indeed that witness testified that he was not in a position to challenge the Minister's denial. No *prima facie* case was made by the appellant in that regard. For that reason there was no case for the Minister to answer. Consequently, no adverse inference could arise from the Minister's failure to present herself for cross-examination by the appellant. The court *a quo* was correct in rejecting the appellant's argument that such adverse inference be drawn against the Minister. It was also correct in rejecting the appellant's contention suggesting that prior conduct on the part of the first respondent *estopped* the respondents from challenging the validity of an agreement that did not comply with statutory provisions.

In the result, the appeal is without merit. It ought to be dismissed. Costs will follow the result.

Accordingly, it is ordered as follows:

"The appeal be and is hereby dismissed with costs."

BHUNU JA **:** I agree

MUSAKWA JA **:** I agree

Coglan, Welsh & Guest, appellant's legal practitioner.

Mhishi Nkomo, 1st & 2nd respondent's legal practitioner.

Ahmed & Ziyambe, 3rd respondent`s legal practitioner.